

e-Portfolio Activity: GDPR Case Study

The case study was reviewed during Unit 5; the write-up was completed at the end of the module.

The case study selected concerns domestic CCTV complaints handled by the Irish Data Protection Commission, including a 2024 complaint in which an individual alleged that a neighbour's multi-camera system was capturing their personal data (Data Protection Commission, 2024).

GDPR aspect

The case turns on the household exemption in Article 2(2)(c) of the GDPR, under which processing in the course of a purely personal or household activity falls outside the Regulation. The boundary is spatial and behavioural: following Ryneš (C-212/13), a camera that captures images beyond the perimeter of the operator's property, such as a public footpath or a neighbour's garden, loses the exemption, and the householder becomes a data controller with full obligations, including lawful basis, signage, retention limits, and handling of access and erasure requests.

How it was resolved

The DPC obtained footage from the operator and found that some cameras captured areas beyond the property perimeter while others were dummy devices. Rather than sanctioning, the DPC engaged the operator to bring the system within the exemption, and declined to disclose further system details to the complainant once compliance was achieved.

As an Information Security Manager

In an organisational setting no exemption applies, so I would require a data protection impact assessment before deployment, a documented field-of-view review confirming cameras capture no more than necessary, visible signage, defined retention periods, and a subject access process. Because modern cameras are typically cloud connected, I would also verify where footage is stored; storage outside the UK or EEA engages the Chapter V transfer rules, a dependency most consumers never consider. The broader lesson I took from this case is that individuals can drift into controller obligations simply by consuming technology, which reshapes how I would brief non-specialists on deploying any recording device.

References

Data Protection Commission (2024) *Case Studies: Domestic CCTV*. Available at: <https://dataprotection.ie/en/dpc-guidance/case-studies/cctv/domestic-cctv> (Accessed: 13 July 2026).

Ryneš v Úřad pro ochranu osobních údajů (2014) *Case C-212/13. Court of Justice of the European Union*, 11 December 2014.